

**JUSTIFICATION & APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION
for SIMPLIFIED ACQUISITIONS OVER THE MICROPURCHASE THRESHOLD (See FAR
Part 2) UP TO SAT
(See RFO FAR 12.102 (a))**

Date: April 8, 2026

Solicitation Number: 140P4226R0015

1. Nature and/or description of the item/service being procured and its intended use (include the anticipated cost):

Department of the Interior (DOI) – Critical Acquisition Response Team (CART) on behalf of National Park Service (NPS) – National Capital Region (NCR) has a White House priority to fill and repair potholes at multiple NCR locations before the America 250 Celebration events schedule in and around Washington, DC from May 1, 2026 through July 4, 2026.

The requirement calls for single contractor to provide all labor, materials, specialized equipment and incidentals to perform pothole repair using specialized self-contained spray injection patching equipment that is capable of high-pressure air cleaning, metered asphalt emulsion delivery, high-velocity asphalt emulsion, and aggregate injections at multiple NPS locations in NCR.

Government Estimate:

2. Sole Source Justification rationale (Check one and explain below):

☐ Only **one responsible source**.

X **Urgent and compelling circumstances exist.** Include critical delivery or performance dates, and when you became aware of the requirement. Provide a specific statement of the impact on Government operations, financial or otherwise, if the required delivery or performance dates are not met.

☐ Other:

Explain:

In accordance with Revolutionary (RFO) Federal Acquisition Regulation, which was implemented through DOI-AAAP-F012 and RFO FAR 12.102 (a) For acquisitions valued at or below the simplified acquisition threshold (SAT), document the decision that only one source is available and the basis for the decision.

NCR has multiple roads, that run through multiple parks in the Washington, DC area that are in need of immediate pothole repairs prior to the America 250 Celebration events scheduled to take place in and around Washington, DC beginning May 1, 2026. The repair of the potholes is being mandated by the White House and requires timely completion to support Executive Order 14252, Making the District of Columbia Safe and Beautiful.

Not only do the pothole repairs need to be fixed immediately, but the repair efforts also need to have minimum impact on the Washington, DC and greater Washington, DC area traffic, with minimum to no closures during the pothole repairing process.

NCR has determined that the only way to complete these repairs in an efficient and timely manner is to have a contractor do these repairs with specialized self-contained spray injection patching equipment that is capable of high-pressure air cleaning, metered asphalt emulsion delivery, high-velocity asphalt emulsion, and aggregate injections. This type of equipment was considered the best approach, and has been successfully used in and around Washington, DC with multiple Agencies, including the DOI – NCR and DOI – IBC in the past.

Due to the specialized nature of the equipment, only Patch Management, Inc, has been found capable of providing this type of specialized equipment for pothole patching/repair. The equipment required must include:

- High pressure air cleaning capability
- Metered asphalt emulsion delivery
- High velocity emulsion and aggregate injection
- Their proprietary system also includes:
 - An ICC-certified recirculation flush system enabling non-hazardous internal cleaning of the emulsion line.
- The capability for continuous “patch-on-the-fly” linear repairs.
- An integrated directional arrow board providing enhanced roadway safety during operations.

Once the pothole patches/repairs are complete, they are suitable for traffic immediately upon completion of patching and repair operations, which will result in minimum to no impact on traffic in the surrounding areas.

While there are many other asphalt repair companies in the surrounding area, only Patch Management, Inc. was found to provide pothole patching/repair services that uses the specialized equipment which provided the required self-contained emulsion delivery, high-velocity asphalt emulsion and aggregate injections for almost instant pothole patching and repairs.

Further, Patch Management, Inc. was found to be a small business concern, that is capable of responding immediately, as they have the full month of April 2026 available, which would meet the immediate pothole repair needs before May 1, 2026. They also have time in June 2026 to address less critical areas.

As authorized by Revolutionary FAR 1.102 (b)(2), awarding to Patch Management, Inc. is a business decision, poses the least amount of risk, and is in the best interest of the Government.

3. Market Research. Please explain the results or why one was not performed. State whether any other offers were received, or anyone expressed interest:

The CO conducted an SBA search for file purposes as the work needed to be completed, and the SBA search that revealed 622 small business contractors under the NAICS Code 237310 – Highway, Street and Bridge Construction in District of Columbia, Virginia and Maryland, which to this Contracting Officer (CO) reasonably concluded as the correct NAICS code to use. While there are multiple vendors available, based on previous experience with other competitive contracts, only Patch Management, Inc. responded and was found to be the only contractor found capable of providing these services with the equipment that is required.

From a business perspective due to the urgency of the requirement, and the fact that Patch Management, Inc. already performs this type of services with this type of specialized equipment they have demonstrated

a superior ability to perform (RFO 1.102 (a)(4)) through successful completion of other projects for the DOI and other agencies.

Further there is significantly less risk, because Patch Management, Inc. can respond quickly and get the work completed before the May 1, 2026, deadline with minimum impact to traffic, which reduces the risk to the Government (RFO 1.102 (a)(1)(2) and (c)). The risk being, if it is not fixed in a timely manner, the White House will elevate concerns and will have an impact of events planned for the America 250 Celebrations. Per FAR 1.102 (a)(1) and EO 13834 on efficient federal operation, the Government is required to minimize administration operating costs and due thing more efficient. While competition is preferred, only Patch Management Inc. has been found capable of providing the required services within the necessary timeframe.

4. If this is a determination for sole source, the contracting officer certifies:

- a. Only one source is available, or urgent and compelling circumstances exist.
- b. The anticipated price will be determined fair and reasonable using the price analysis techniques described in original FAR Part 13.106-3(a), as authorized by RFO 1.102 (b)(4), because the RFO does not fully address construction under RFO Part 12 in this CO's opinion, and creates inconsistencies, which can reasonably be eliminated by using the original FAR 13 fair and reasonable determinations for simplified acquisition procedures under the SAT.

(Signature) _____ (Date) _____

Name & Title: _____

(Signature) _____ (Date) _____

Name: Brian McCabe

Contracting Officer

Over \$50,000: (if applicable)

(Signature) _____ (Date) _____

Name: _____

Warranted Individual 1 Level Above Contracting Officer